

25STCV07953 25STCV07953

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Case Number: 25STCV07953 Hearing Date: September 18, 2026 Dept: 316

BACKGROUND

This case is a lemon law matter.

On October 1, 2025, Plaintiff Matthew LaPrade filed his first amended complaint against Defendant General Motors, LLC. The complaint alleges five causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle. Defendant's demurrer to the fourth and fifth causes of action was sustained without leave as to the fourth cause of action and with leave as to the fifth cause of action. No amended complaint was filed so the remaining causes of action are the first through fifth.

On June 29, 2026, Defendant filed a Motion for Summary Judgment ("MSJ").

No opposition or reply has been filed.

TENTATIVE RULING

Defendant's Motion for Summary Judgment is GRANTED.

This action is dismissed, and judgment is entered in favor of Defendant General Motors, LLC.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2)

determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

"[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

A moving defendant need not conclusively negate an element of plaintiff's cause of action. (See Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) Instead, to meet this burden of showing a cause of action cannot be established, a defendant must show not only "that the plaintiff does not possess needed evidence", but also that "the plaintiff cannot reasonably obtain needed evidence." (Ibid.) It is insufficient for the defendant to merely point out the absence of evidence. (See Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (See Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 855.)

"Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, "shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action." (Ibid.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

REQUEST FOR JUDICIAL NOTICE

Defendant requests the Court take judicial notice of one exhibit – a list of all manufacturers that have elected to opt-in to Cal. Code of Civil Procedures § 871.20 et seq, as maintained on the California Department of Consumer Affairs' government website, as of November 10, 2025.

This exhibit comes from the California Department of Consumer Affairs. Therefore, the Court shall take judicial notice of this exhibit under Evidence Code section 425, subdivision (h).

DISCUSSION

The Court finds that Plaintiff's only remaining causes of action – causes of action one through three – are time-barred.

Code of Civil Procedure section 871.21, which states:

(a)

An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b)

Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(c)

The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows:

(1)

As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable.

(2)

For the time the motor vehicle is out of service by reason of repair for any nonconformity.

(3)

For the time period after
a pre-suit notice is provided to the manufacturer in
accordance with Section 871.24, which time
period shall not exceed 60 days.

(Code
Civ. Proc., § 871.21.)

Code of Civil Procedure section 871.20 demonstrates which
causes of action fall under Code of Civil Procedure section 871.21:

(a)

[T]his chapter applies to an action, brought against a manufacturer who has
elected under Section 871.29 to proceed under this chapter, seeking restitution
or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2,
Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties
pursuant to subdivision (c) of Section 1794 of the Civil Code, where the
request for restitution or replacement is based on noncompliance with the
applicable express warranty.

(b)

This chapter does not apply to service contract claims under Section 1794
of the Civil Code or any action seeking remedies that are not restitution or
replacement of a motor vehicle.

(Code
Civ. Proc., § 871.21.)

Furthermore, Code of
Civil Procedure section 871.30, subdivision (a) expressly allows a manufacturer
to opt into this statutory scheme for all vehicles sold before 2025. (See Code Civ. Proc., § 871.30, subd. (a)
[“[A] manufacturer may elect to be governed by this chapter for all
actions described in subdivision (a) of Section 871.20 with respect to all of
its motor vehicles sold in the year 2025 and in all prior years”]; see also *McClung v. Emp. Dev. Dep’t* (2004) 34
Cal.4th 467, 475 [“[A] statute may be applied retroactively only if it contains
express language of retroactivity or if other sources provide a clear and
unavoidable implication that the Legislature intended retroactive
application.”].) Thus, once a manufacturer opts into this statutory scheme
pursuant to Code of
Civil Procedure section

7871.29, any prior purchase of a vehicle would be subject to this statute of limitations. (See Code Civ. Proc., § 871.30, subd. (a).) 22

Here, Plaintiff purchased the subject vehicle on May 6, 2017.

(UMF No. 1.) Plaintiff did not initiate this action until March 19, 2025. (UMF No. 27.) Furthermore, on April 23, 2025, Defendant opted into the statutory scheme of Code Civil Procedure section 871.20. (UMF No. 28; RJN, Exh. 24.)

Because Defendant opted into Code Civil Procedure section 871.20's statutory scheme, Plaintiff's purchase of the subject vehicle was covered by the statutory scheme. (See Code Civ. Proc., § 871.30, subd. (a).) Accordingly, Plaintiff needed to bring this action within six years of the original delivery (i.e., May 6, 2023). (See Code Civ. Pro. § 871.21, subd. (b).) Plaintiff did not bring this action until March 19, 2025, nearly two years after the applicable deadline. (See UMF No. 27.) Therefore, Plaintiff's actions are time-barred under the applicable statute of limitations.

Given the foregoing, Defendant has demonstrated that Plaintiff does not possess and cannot obtain needed evidence to establish his causes of action.

(See *Aguilar v. Atlantic Richfield Co.*, 2001)

25 Cal.4th 826, 854.) Further, Plaintiff did not file an opposition and

therefore has not demonstrated that there is a triable issue of material fact.

(See Code Civ. Proc., § 437c, subd. (p)(2).) For this reason, the Court grants the motion for summary judgment. (See *Avivi v. Centro Medico Urgente*

Medical Center, 2008) 159

Cal.App.4th 463, 467.)

CONCLUSION

For the foregoing reasons, Defendant's Motion for Summary Judgment is GRANTED.

This action is dismissed, and judgment is entered in favor of Defendant General Motors, LLC